

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 13, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. White moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 22, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meeting of the Governing Body on June 29, 2020. Motion (per Consent Agenda) carried.

Mayor Orr opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for Lots 1 and 2 and a Portion of a 20 Foot Vacated Alley being adjacent to and west of said Lots 1 and 2, Block 1, Prairie Hills Addition, Laramie County, Wyoming (located northwest of the intersection of Yellowstone Road and Western Hills Blvd). There being no comments or input and purpose of the hearing having been met, Mayor Orr closed the hearing.

ORDINANCE – 3rd READING – Amending Section 2.76.020, Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming. Amber Ash, Downtown Development Authority Executive Director, advised she was available for any questions. Upon inquiry, Ms. Ash and Mayor Orr provided information on the application process for boards/commissions explaining there are often more applications received than positions available. Applications are kept until there is a vacancy and the applicant is contacted to see if they are still interested. Reporting for Public Services Committee, Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4316)

ORDINANCE – 3rd READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LR (Low-Density Residential) to MUR (Mixed-

Use Residential Emphasis) for property generally located northeast of the intersection of Kelley Drive and Old Faithful Road. Kari Happold, Rustic Wyoming Reality, advised she was available for any questions and explained Rustic Wyoming Reality is looking to expand. Mr. Luna welcomed Ms. Happold to Ward III. Tom Jacobson, #1 Properties, owner representative, voiced support for the ordinance. Mr. Case moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4317)

ORDINANCE – 3rd READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MUB (Mixed-Use Business Emphasis) for property generally located northeast of the intersection of west 21st Street and Reed Avenue. Matt Ashby, agent representing owner, advised he was available for any questions. Mr. Case moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4318)

ORDINANCE – 2nd READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from CB Community Business to MUB Mixed-Use Business Emphasis for a portion of the SE1/4 of Section 33, T.14N., R66W, 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Sparks Road, west of Ridge Road). Jim Grenfell, Executive Director of Wyoming Housing Network, provided information on the land and explained the anticipated use includes senior living units with garages and adequate parking. Mr. Grenfell advised he has had discussions with Environmental Health regarding the potential to place a clinic on the property. He further advised it is anticipated that the remaining 6 acres will be used for future multi-family low income housing units. Mr. Case moved to approve on second reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Chapter 5.04, Business Licenses, Generally, and Chapter 5.08, Business License fees, and creating a new Chapter 5.77, Nicotine Product Sales, of Title 5, Business Licenses and Regulations; amending Chapter 8.64, Smoking in Public Places, of Title 8, Health and Safety; and amending Chapter 9.16, Offenses by or Against Minors, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. Brittany Wardle expressed appreciation to the governing body for consideration of the ordinance and advised that the proposed licensing allows restrictive measures that can be utilized to help eliminate underage nicotine sales. Reporting for Finance Committee, Mr. Luna moved to approve on second reading, seconded by Mr. White. Mr. White advised the ordinance reflects State Statute modifications raising the age from 18 to 21 for purchasing tobacco/nicotine products. Mr. White advised the Wyoming State Legislature did the same and noted that he, Ms. Wardle, Joe Chenchar, Assistant City Attorney, and a representative of the American Cancer Society reviewed the proposed ordinance changes. Upon inquiry, Mr. White advised it is his understanding there were no comments received from small business owners or the Police Department regarding the proposed changes. Joe Chenchar, Assistant City Attorney, upon inquiry, advised he will seek verification of businesses being notified regarding the proposed changes. Request for clarification of the proposed changes vs. existing law was made and noted it appears there is a new license requirement and an increased fee, banning of vending machines and new eligibility requirements for licensees. Mr. Chenchar advised the existing annual tobacco license fee is \$65.00, noting the proposed increased fee was determined to assist with compliance check expenses. Upon inquiry,

Mr. Chenchar provided information relating to the appeal process involving annual violations, noting it is the decision of the governing body to pursue suspension/revocation of a license. Mr. Chenchar confirmed convictions would be through the Municipal Court. Support was expressed for the ordinance and comment was made related to timing of raising license fees considering the current COVID-19 hardships on small businesses. Motion failed. Voting “yes” – Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. White. Voting “no” – Mr. Case, Mr. Cook, Mr. Luna, Mayor Orr, Mr. Roybal, and Mr. Shanor.

ORDINANCE – 2nd READING – Amending Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. Mr. Case moved to withdraw the ordinance. Dr. Rinne raised a point of order that the item could not be withdrawn stating that after an agenda item has been introduced, it belongs to the governing body and can’t be withdrawn. Mayor Orr asked if there were any objections to the motion to withdraw, to which Mr. Laybourn and Dr. Rinne expressed objection. Michael O’Donnell, City Attorney, reported that after a quick review Roberts Rules of Order and concurrence from Alessandra McCoy-Fakelman, Deputy City Attorney, it would be appropriate to vote the motion to withdraw down. Motion to withdraw failed. Voting “no” – all members of the governing body. [Clerk’s note: the item died due to the lack of a motion to approve]

ORDINANCE – 1st READING – Annexing to the City of Cheyenne, Wyoming, land located northwest of the intersection of Western Hills Boulevard and Yellowstone Road – referred to Public Services Committee. (SPONSOR – MR. CASE)

ORDINANCE – 1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU (Mixed-Use) to MUB (Mixed-Use Business Emphasis) for property generally located northwest of the intersection of Western Hills Boulevard and Yellowstone Road – referred to Public Services Committee. (SPONSOR – MR. CASE)

ORDINANCE – 1st READING – Amending Chapter 2.29, Community Service Officers, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming - – referred to Public Services Committee. (SPONSOR – MR. CASE)

ORDINANCE – 1st READING – Defining the terms and conditions of employment for non-uniformed employees of the City for Cheyenne for Fiscal Year 2020-2021 – referred to Finance Committee. (SPONSOR – MR. WHITE)

ORDINANCE – 1st READING – Defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department for Fiscal Year 2020-2021 – referred to Finance Committee. (SPONSOR – MR. WHITE)

RESOLUTION – Creating a Special District for ‘Cheyenne Days – Legendary Nights Events’, July 17, 2020 to July 26, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries. Amber Ash, Executive Director of the Downtown Development Authority, explained there were initially several events planned but due to the COVID-19 pandemic, sponsors of the events made the decision to cancel them. Ms. Ash reported

the DDA evaluated the costs associated with the open container event and it was determined those costs weren't justified without major events taking place. Ms. Ash further advised the Paint Slingers asked to remove their event from the event list along with concerts that were planned on that Wednesday and Friday. Ms. Ash requested the item be withdrawn if possible or otherwise disposed of noting however, that a negative vote is not desired as future events could be considered. Comments included: concurrence of the event no longer being feasible, consumption area including entire DDA districts, special district resolution being a "pilot program", support of the resolution in hopes it may help businesses in the area, management and enforcement for these types of activities and suggestions for more defined boundaries. Ms. Ash advised she hasn't specifically consulted with other communities about their open container events and that the DDA is looking to re-evaluate the district in the future to use the Main Street District to define consumption boundaries as it is smaller and more contained. Mr. Luna moved to adopt, seconded by Mr. Roybal. Mr. Luna moved to amend by substitute dated July 8, 2020 seconded by Mr. Roybal. Mr. White explained the amendment includes removing the Paint Slingers event from the event listing and increasing the event cup size from 12 ounces to 16 ounces. Chief Brian Kozak, Police Department, explained it was his understanding that the intent of the open container approval was for a specific downtown area that could be effectively monitored, and each eligible establishment would be provided with a certain number of event wristbands and cups. Ms. Ash advised the events that are currently scheduled for Cheyenne Day are the Melodrama, Dueling Pianos and a potential block party and further advised the DDA will be promoting merchant sales and sidewalk sales. Motion to amend carried. Voting "yes" – all members of the governing body with exception of Mr. Laybourn voting "no". Chief Kozak clarified that there would be no additional police officer expense for Cheyenne Day as it is covered under their annual budget and noted open consumption without specific planned events may be less than ideal. Additional comments were made supporting the intent of the resolution, concerns with issues raised regarding costs and enforcement, lack of participation and current public health environment. Motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn, Mayor Orr, and Dr. Rinne voting "no". [Clerk's note: Dr. Rinne confirmed he was a "no" vote which wasn't acknowledged due to a delayed audio response involving electronic meeting lag time] (#6071)

[CA] RESOLUTION – Encouraging Summer Events at the Cheyenne Depot Plaza. Motion (per Consent Agenda) carried. (#6072)

[CA] RESOLUTION – Certifying the Municipal Complex Pedestrian Routing Plan – referred to Public Services Committee. (SPONSOR – MR. CASE)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Hawk's Point Subdivision, a plat of a portion of the SE ¼, Section 33, T.14N, R.66W., 6th P.M., Cheyenne, Laramie County, Wyoming (located between Lincolnway and Nationway, west of Ridge Road) – referred to Public Services Committee. (SPONSOR – MR. CASE)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Stanfield Addition, 4th Filing, a replat of Lots 1-4, Block 652, Stanfield Addition, Cheyenne, Laramie County, Wyoming (located at the southwest corner of the intersection of Thomes Avenue

and W. 6th Street – referred to Public Services Committee. (SPONSOR – MR. CASE)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Stanfield Addition, 5th Filing, a replat of Lots 4-6, Block 693, Stanfield Addition and Lots 1-3, Block 694, Stanfield Addition, Second Filing, and all of those remaining portions of Lots 4 and 5, Stanfield Addition, Second Filing, Cheyenne, Laramie County, Wyoming (located at the southeast corner of the intersection of Stanfield Avenue and W. 5th Street) – referred to Public Services Committee. (SPONSOR – MR. CASE)

[CA] RESOLUTION – Declaring as surplus a City-owned property generally located at the northeast corner of Morrie Avenue and East Lincolnway, together with improvements thereon, and authorizing the City to proceed with the process to dispose of the property pursuant to Wyo. Stat. §15-1-112(A) – referred to Finance Committee. (SPONSOR – MR. LUNA)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2020 and ending June 30, 2021 – referred to Finance Committee. (SPONSOR – MR. LUNA)

[CA] Preliminary Plat for Whitney Ranch, 3rd Filing, a plat of a portion of the SE¼, Section 33, T14N, R66W, 6th PM, Cheyenne, Laramie County, Wyoming (located north of Dell Range Blvd., along Van Buren Avenue) – referred to Public Services Committee.

[CA] Grant Agreement between the City of Cheyenne, Office of Youth Alternatives Foster Grandparent Program and the Wyoming Department of Health, Aging Division in the amount of \$28,272.00 for services provided to the senior volunteers. (State of Wyoming Grant). Motion (per Consent Agenda) carried. (#7191)

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS). (General Fund). Motion (per Consent Agenda) carried (amount not to exceed \$39,860.00). (#7192)

[CA] A Section 5307 COVID-19 Emergency Relief for Operations Grant Agreement between the Federal Transit Administration and the City of Cheyenne to fund Transit operations and purchase of PPE related to COVID-19. (5307 CARES Act Grant). Motion (per Consent Agenda) carried (revenue to the City in the amount of \$744,674.00). (#7193)

[CA] A Coronavirus Aid Relief, and Economic Security (CARES) Act Grant Agreement between the Federal Transit Administration and the City of Cheyenne to fund Transit operations. (5307 CARES Act Grant). Motion (per Consent Agenda) carried (revenue to the City in the amount of \$3,346,241.00). (#7194)

[CA] Contract between the Wyoming Department of Family Services and the City of Cheyenne, Office of Youth Alternatives, for kinship advocacy services for displaced, at-risk youth (Department of Family Services Grant) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7155 Sponsorship Agreement between the City of Cheyenne and Spradley Barr Toyota. (revenue to the City). Motion (per Consent Agenda) carried (revenue to City in the amount of \$35,000.00). (#7155)

[CA] Contract Modification #3 to Contract #6885 between the City of Cheyenne and Simon Contractors for the 2018 Mountain Road and 20th Street Pavement Rehabilitation project to provide additional funds for unforeseen preparatory work to the underlying road surface (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$65,000.00). (#6885)

[CA] Consideration of Bid #E-26-20 for furnishing one (1) new 2020-2021 Motorized Articulated Trash Compactor with straight blade and heavy duty trash guarding for the City of Cheyenne Landfill (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Wyoming Machinery Co., Cheyenne, in an amount not to exceed \$483,461.64).

[CA] Consideration of Bid #E-17-20 for furnishing one Panasonic PT-RZ21K Projector with lens and accessories for the City of Cheyenne Civic Center. (Recreation Program Fund). Motion (per Consent Agenda) carried (accepted bid from Brown Note Productions, Thornton, CO, in an amount not to exceed \$51,142.86).

[CA] Consideration of Bid #S-14-20 for a contract between the City of Cheyenne and Simon Contractors for the Prairie Avenue & Frontier Mall Drive Intersection Project. (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Simon Contractors, Cheyenne, in an amount not to exceed \$1,339,846.50).

[CA] Consideration of Bid #S-13-20 for a contract between the City of Cheyenne and JTL Group Inc. d/b/a Knife River for the Allison Road & Cribbon Avenue Median Improvements Project (2015-2018 1% Sales Tax and WYDOT Grant) – referred to Finance Committee.

[CA] Request to expand retail liquor license package store dimensions for Avanti, Inc. d/b/a Dell Range Liquor, 3806 Dell Range Blvd. – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Appointments of Anthony Ortiz, Katherine Brady and Sara Weber to the Downtown Development Authority Board and Jason Powell to the Contractor Licensing Board. Mr. White moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Under other business:

Margaret Thompson submitted a petition with signatures of residents living within in her building opposing the Saturday Cruise Nights relating to excessive noise during the events. Ms. Thompson shared her experiences with excessive noise and advised she has a noise meter that she has used to record excessively high readings. She further commented on and provided information

on noise limits as sited in current city code and requested consideration for an alternative location for the event. Mayor Orr expressed appreciation to Ms. Thompson for bringing forward a recommendation for an alternate location. Chief Kozak advised the Police Department does have a sound meter and reported enforcement in this case is difficult due to the nature of this particular event as there are multiple vehicles involved and there isn't a particular event organizer or entity sponsoring the event. Chief Kozak further reported violations of this particular city code section are difficult to enforce. Mr. Laybourn expressed concerns relating to Ms. Thompson's and accompanying petitioner's complaint and supported efforts to reach a resolution.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:16 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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